FIELD GUIDE 04 · EDUCATION & ACADEMIC LEADERSHIP

# EB-1A

## for Educators

### THE ACADEMIC AUTHORITY

A premium guide for professors, deans, curriculum architects, and education leaders building a self-petitioned extraordinary ability case

AiVass

Published by AiVass LLC

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# Contents


01 **Education — The Underused Field** ..... 6
*Named in the statute, and almost nobody claims it.*

02 **The Standard in Plain English** ..... 8
*Three prongs, one definition, two steps.*

03 **The Education Criteria Map** ..... 10
*Where academic careers become evidence.*

04 **Category Selection & Field Definition** ..... 13
*EB-1A, EB-1B, or NIW — and top of what?*

05 **Criterion 5 Masterclass** ..... 17
*Original pedagogy — proving your work left the building.*

06 **Criterion 8 Masterclass** ..... 21
*Leading or critical role — rankings, grants, and the division pathway.*

07 **Judging & Scholarship** ..... 24
*Criteria 4 and 6 — the criteria educators already satisfy and rarely document.*

08 **Awards, Memberships & the Practitioner Bridge** ..... 27
*Criteria 1, 2, and comparable evidence for K-12 and system leaders.*

09 **Final Merits & the Evidence Sprint** ..... 30
*From five checkmarks to one verdict — in 180 days.*

10 **Filing, Fees & Timing** ..... 34
*Mechanics, money, and the one variable you do not control.*

11 **Expert & B2B Annex** ..... 37
*For attorneys, paralegals, legal-ops teams, and in-house mobility.*

12 **Myths, Red Flags & Your Self-Assessment** ..... 41
*Score the record you have. Then build the record you need.*


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CHAPTER

# 01

# Education — The Underused Field

*Named in the statute, and almost nobody claims it.*

Education is one of the five statutory fields in INA § 203(b)(1)(A). It is also, by a wide margin, the least-claimed. Educators who could file EB-1A instead file EB-1B through an employer, or EB-2 NIW into a decade-long queue, because the ten criteria — scholarly articles, judging, original contributions — read like a research scientist's CV rather than a dean's.

That reading is a mistake. Every one of those criteria has an education-native form. And the current USCIS Policy Manual names, **by name**, two factors that establish an academic organization's distinguished reputation: **national rankings** and **government research grants**. The agency was thinking about your world when it wrote that.

## What the category offers an academic career

- **Self-petition.** No university, district, or ministry sponsors you. You file your own Form I-140.
- **No job offer, no PERM.** The Policy Manual confirms an EB-1A petition "does not need to be supported by a job offer." You are not bound to a department, a tenure clock, or a visa-sponsoring dean.
- **Freedom to move.** For educators on H-1B or J-1 whose status is chained to one institution, this is the whole point.
- **First preference.** Current for most countries, with premium processing available — and, for Indian and Chinese nationals, dramatically shorter than EB-2 (Chapter 10).

## Who this guide is for

- Professors and academic researchers whose field is education, pedagogy, or a discipline taught at university level.



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- Deans, department chairs, provosts, and institutional leaders.
- K-12 system leaders: superintendents, principals of nationally recognized programs, ministry officials.
- Curriculum designers, assessment developers, and instructional architects.
- Teacher-trainers and professional-development leaders working at national scale.
- Ed-tech founders and education entrepreneurs with genuine pedagogical credentials.

## The excellent-versus-extraordinary gap

Here is the sentence that costs education petitions: **"I transformed my school."** It is often true, frequently admirable, and — standing alone — legally insufficient. The regulation asks whether you are among the small percentage at the very top of the **field**, and the Manual states that contributions must be of major significance **in the field** — not to one employer, however large or excellent.

| Excellent (institutional) | Extraordinary (field-level) |
|---|---|
| Award-winning teacher at a respected university | National teaching prize with documented selectivity across the country |
| Redesigned my department's curriculum | Curriculum adopted by 1,200 schools across four states, with outcome data |
| Published in peer-reviewed journals | Publications cited well above field norms; textbook in its third edition with a major academic publisher |
| Chaired my department | Dean of a nationally ranked school holding federal research grants; architect of a national reform |
| Trained my school's teachers | Trained 4,000 teachers under a ministry mandate; the model is now the national standard |

**The bottom line**

Education is a named field with a specific trap: excellence inside an institution reads to USCIS as a job well done. Acclaim outside it reads as extraordinary ability. This guide is about crossing that line — and proving you crossed it.



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YOU'VE SEEN THE PREVIEW

# Unlock the full EB-1A for Educators

This preview shows 5 of 47 pages. The complete guide gives you every criterion in depth, the evidence-mapping framework, the filing and fees breakdown, the expert annex, and the full self-assessment scorecard.

**The full guide includes:**

- Every one of the ten criteria, explained as USCIS actually applies them
- The evidence-mapping method: turn scattered achievements into proof
- A 30 / 90 / 180-day evidence sprint you can start today
- Filing, fees, and Visa Bulletin timing — with a dated snapshot
- The expert & B2B annex: intake, QC checklist, RFE risk register
- A scored self-assessment to know exactly where you stand

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